

Abdul Ahmad v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 21 February 2023 · WRIT - C No. 4991 of 2023 · **Disposed; fresh Supply Code order after hearing once recovery withdrawn**

HEADNOTE

On the Electricity Department's statement that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing the petitioner, the writ was disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Abdul Ahmad filed Writ-C No. 4991 of 2023 in the Allahabad High Court against the State of U.P. and four others, seeking quashing of the Executive Engineer, Electricity Distribution Division, Khalilabad's order dated 25.06.2022 and a recovery certificate dated 11.01.2023 in an alleged electricity-theft case. On 14 February 2023 the petition was passed over so counsel for respondent nos. 2 to 4 could take instructions, and was directed to be listed as fresh on 21 February 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fresh order after withdrawal of electricity-theft recovery

HOLDING

Where the Electricity Department states that the impugned recovery in a theft case has been withdrawn and that a fresh order will be passed after hearing the consumer, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2

FLAG No clause number is cited. 'procedure' records the order's reference to the procedure prescribed under the U.P. Electricity Supply Code, 2005, and is not a numbered Code clause.

PRINCIPLE TAGS

fresh-order-under-supply-code-procedure The writ ended on the department's concession that the theft recovery stood withdrawn, leaving a fresh order to be passed after hearing and strictly under the procedure in the U.P. Electricity Supply Code, 2005. No Code clause was construed. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE EXECUTIVE ENGINEER'S ORDER AND THE RECOVERY CERTIFICATE IN THE ELECTRICITY-THEFT CASE

The department withdrew the recovery and undertook a fresh order after hearing. The Court did not decide the theft allegation or apply any numbered Supply Code clause. ¶ 2